Supreme Court, U.S.
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In The

Supreme Court of the United States

October Term, 1998

JONATHAN W. MARSHALL, et al.,

Petitioners,

v.

RONALD SUSTER, et al.,

Respondents.

On Petition For Writ Of Certiorari
To The United States Court Of Appeals
For The Sixth Circuit

BRIEF FOR RESPONDENTS CHRISTOPHER BOYKO, GAIL ROSE KANE AND STUART SAFERIN IN OPPOSITION TO PETITION FOR WRIT OF CERTIORARI

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QUESTIONS PRESENTED

I. Whether the Sixth Circuit abused its discretion in remanding this case to allow the district court to consider amendments to the judicial canon imposing campaign expenditure limits on candidates running for judicial office.

II. Whether this Court's ruling in *Buckley v. Valeo,* 424 U.S. 1 (1976), prohibits the Ohio Supreme Court from imposing campaign spending limits on candidates for elected judicial office in Ohio.

LIST OF PARTIES

Stuart Saferin former Judge, Cuyahoga County Common Pleas Court; judicial candidate, 1996

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STATUTORY AND CONSTITUTIONAL PROVISIONS INVOLVED

Article IV, Section 6 of the Ohio Constitution:

(A) (1) The chief justice and the justices of the supreme court shall be elected by the electors of the state at large, for terms of not less than six years.

(2) The judges of the courts of appeals shall be elected by the electors of their respective appellate districts, for terms of not less than six years.

(3) The judges of the courts of common pleas and the divisions thereof shall be elected by the electors of the counties, districts, or, as may be provided by law, other subdivisions, in which their respective courts are located, for terms of not less than six years, and each judge of a court of common pleas or division thereof shall reside during his term of office in the county, district, or subdivision in which his court is located.

(4) Terms of office of all judges shall begin on the days fixed by law, and laws shall be enacted to prescribe the times and mode of their election.

Article III of the Code of Judicial Conduct of Ohio:

B. Adjudicative responsibilities

(2) A judge shall be faithful to the law and maintain professional competence in it. A judge shall not be swayed by partisan interests, public clamor, or fear of criticism.

Canon VII of the Code of Judicial Conduct of Ohio:

B. Political and campaign conduct in general

(2) A judge or judicial candidate shall not do any of the following:

(c) Make pledges or promises of conduct in office other than the faithful and impartial performance of the duties of the office;

(d) Make statements that commit or appear to commit the judge or judicial candidate with respect to cases or controversies that are likely to come before the court.

C. Campaign solicitations and expenditures

(5)(a) Except as otherwise provided in division (C)(5)(b) of this canon, the campaign committee of a judicial candidate shall not directly or indirectly solicit or receive in the fund raising period allowed by division (C)(4) of this canon a campaign contribution aggregating more than the following:

(i) From an individual other than the judicial candidate or a member of his or her immediate family, two thousand dollars in the case of a judicial candidate for chief justice or justice of the Supreme Court, five hundred dollars in the case of a judicial candidate for the court of appeals, or two hundred fifty dollars in the case of a judicial candidate for the court of common pleas, municipal court, or county court.

(ii) From any organization, five thousand dollars in the case of a judicial candidate for chief justice or justice

of the Supreme Court or two thousand five hundred dollars in the case of all other judicial candidates.

(iii) From a political party, an amount equal to thirty-five percent of the maximum amount of expenditures permitted to be made by the campaign committee of the judicial candidate pursuant to division (C)(6) of this canon.

Rule II of Ohio Supreme Court Rules for the Government of the Judiciary:

Section 5. Campaign conduct; enforcement and sanctions

(E)(1) Within five days of receiving the report, the Supreme Court shall appoint a commission of five judges as provided in section 2701.11 of the Revised Code and Gov. Jud. R. III. The commission shall expedite its consideration of the report and may make its determination from the report of the hearing panel, permit or require the filing of briefs, conduct a hearing, or order the hearing panel to take additional evidence. If the commission determines by clear and convincing evidence that a violation of Canon 7 has occurred, the commission may enter an order that includes one or more of the following:

(a) A disciplinary sanction against the respondent;

(b) An order enforceable by contempt of court that the respondent cease and desist from engaging in the conduct that was found to be in violation of Canon 7;

(c) A fine imposed against the respondent;

(d) An assessment against the respondent of the costs of the proceeding;

(e) An assessment against the respondent of the reasonable and necessary attorneys fees incurred by the complainant in prosecuting the grievance.

Rule V of the Ohio Supreme Court Rules for the Government of the Bar:

Section 6. Proceedings of the board after filing of the complaint.

(A) Definitions.

(1) Misconduct. "Misconduct" means any violation by a justice, judge, or an attorney of any provision of the oath of office taken upon admission to the practice of law in this state or any violation of the Code of Professional Responsibility or the Code of Judicial Conduct, disobedience of these rules or of the terms of an order imposing probation or a suspension from the practice of law, or the commission or conviction of a crime involving moral turpitude.

(B) Manner of discipline. Any justice, judge, or attorney found guilty of misconduct shall be disciplined as follows:

(1) Disbarment from the practice of law;

(2) Suspension from the practice of law for an indefinite period subject to reinstatement as provided in Section 10 of this rule;

(3) Suspension from the practice of law for a period of six months to two years subject to a stay in whole or in part;

(4) Probation for a period of time upon conditions as the Supreme Court determines, but only in conjunction

with a suspension ordered pursuant to division (B)(3) of this section;

(5) Public reprimand.

STATEMENT OF THE CASE

On September 10, 1996, the trial court issued an order enjoining the Petitioners ("the State") from enforcing Canon VII(C)(6) of the Ohio Code of Judicial Conduct. (A-85). Canon VII(C)(6) imposes limits on campaign expenditures for candidates for the bench in Ohio judicial elections. At issue in this case is Canon VII(C)(6)(d), which in 1996 limited candidates seeking seats on Ohio's courts of common pleas to spending $75,000 to advance their own elections. The trial court's original order prevented the State from enforcing the canon against any judicial candidate in Ohio. At the State's urging, however, the court issued an Amended Order on September 25, 1996, limiting its order to the parties directly before the court. (A-55).

The Honorable Gail Rose Kane, the Honorable Christopher A. Boyko, and the Honorable Stuart Saferin ("the Cleveland Intervenors") were all sitting judges on the Court of Common Pleas for Cuyahoga County when they joined this action. (A-4 – A-5). The Cleveland Intervenors also were candidates in the November 5, 1996 general election and subject to the Ohio Code of Judicial Conduct, including the spending limits imposed by Canon VII(C)(6)(d). (*Id.*) Each of the Cleveland Intervenors had the wherewithal to spend, and intended to spend, sums in excess of the campaign spending cap contained in

Canon VII(C)(6)(d) in order to communicate with the voters of Cuyahoga County regarding his or her individual candidacy. However, if the Cleveland Intervenors exceeded the spending cap, they faced investigations under Rule II, § 5 of the Supreme Court Rules for the Government of the Judiciary of Ohio and possible disciplinary sanctions, including probation suspension or disbarment from the practice of law, fines, cease and desist orders, and an assessment of costs. (*Id.*); Ohio Gov. Jud. R. II, § 5(E)(1); Ohio Gov. Bar R. V, § 6 (A) – (B).

Consequently, on October 15, 1996, the Cleveland Intervenors filed a Verified Complaint in Intervention, a Motion to Intervene, and a Motion for Temporary Restraining Order and Preliminary Injunction. The Court granted the Cleveland Intervenors' Motion to Intervene and Motion for Preliminary Injunction. (A-30). In granting the Motion for Preliminary Injunction, the Court specifically found that any harm which the injunction might cause to the opponents of the Cleveland Intervenors would be overwhelmingly outweighed by the other three factors required for granting injunctive relief: a " 'very high likelihood of success on the merits,' the clear presence of irreparable harm, and the public's core interest in hearing plaintiffs' speech." (A-33).

The State filed a timely appeal to the United States Court of Appeals for the Sixth Circuit. In accordance with the Revised Briefing Schedule for the case, the Cleveland Intervenors were required to file their proof brief with the Court on April 28, 1997. The Cleveland Intervenors filed their brief in a timely manner.

However, after the appeal was perfected and the proof briefs were filed, the Ohio Supreme Court adopted amendments to the Code of Judicial Conduct effective June 1, 1997. These amendments involved changes to Canon VII(C)(6) to include population-based campaign expenditure limits for candidates for the office of judge for common pleas courts in Ohio (hereinafter the "Amended Canon"). The Cleveland Intervenors object to any references to Amended Canon in these proceedings. None of the evidence in the record for this case involves the Amended Canon. The record before this Court contains testimony and documentary evidence gathered at a hearing before the district court for preliminary injunctive relief from the Canon as it existed when the Respondents sought election to the bench in 1996. The Amended Canon did not become effective until almost two months after the Cleveland Intervenors filed their proof brief with the court of appeals, effectively foreclosing any meaningful discussion of the changes in the Canon in the briefs. Final briefs were filed on July 30, 1997. On February 17, 1998, almost seven months after the filing of the final briefs with the court of appeals, the State filed a motion requesting that the Sixth Circuit review the Amended Canon. The Cleveland Intervenors opposed the motion. Following oral arguments on the merits, the Sixth Circuit remanded the case to the district court to consider the Amended Canon. (A-8).

In attempting to turn this appeal into an evidentiary hearing, the State refers to documents outside the record. The Cleveland Intervenors object to any references to any evidence not considered by the trial court, including the American Bar Association's Report and Recommendation

of its Task Force on Lawyer's Political Contributions, and Pennsylvania's Report of the Special Commission to Limit Campaign Expenditures. Neither report is included in the record in this case and cannot be considered. *Adickes v. Kress & Co.*, 398 U.S. 144, 157 n. 16 (1970).

The Cleveland Intervenors also take exception to the State's claim that the Sixth Circuit erroneously considered Canon VII(C)(6) as it existed when the Cleveland Intervenors ran for office. The specific issue before the Sixth Circuit was whether the district court abused its discretion in enjoining the enforcement of Canon VII(C)(6) against the Respondents. In making its ruling, the district court had to weigh four factors: (1) the likelihood of the plaintiffs' success on the merits; (2) irreparable harm in the absence of the injunction; (3) whether the injunction will harm others; and (4) whether the public interest will be served by an injunction. *International Longshoreman's Ass'n Local 1937 v. Norfolk Southern Corp.*, 927 F.2d 900, 903 (6th Cir.), *cert. denied*, 502 U.S. 813 (1991). In determining whether the district court had abused its discretion in granting the injunction, the Sixth Circuit of necessity had to examine whether the record supported the district court's findings. Having determined that the record indeed did support the granting of injunctive relief, the Sixth Circuit has rightly remanded the case to the district court for determination of the constitutionality of the Amended Canon.

REASONS FOR DENYING THE PETITION

The Cleveland Intervenors respectfully request that this Court deny the Petition for a Writ of Certiorari seeking review of the decision of the United States Court of Appeals for the Sixth Circuit in this case. Contrary to the State's argument, the court of appeals' decision does not conflict with the decision of any other court of appeals. Instead, the Sixth Circuit has taken the prudent course of remanding the case to allow the district court to examine the Amended Canon in the first instance.

I. The Sixth Circuit did not abuse its discretion in remanding the case to the district court.

The Supreme Court of Ohio altered the judicial canon that the Respondents sought to enjoin after the district court made its ruling granting the preliminary injunction. The State did not ask the court of appeals to consider the Amended Canon until almost seven months after the final briefs were filed. Consequently, the court of appeals was asked to rule on the constitutionality of a provision that the district court had not reviewed and that the parties had not briefed. Rather than rule on the constitutionality of the Amended Canon, the court of appeals remanded to the district court so that it could consider the amendments.

Far from being an abuse of discretion, remanding the case to the district court is the preferred procedure when a change in law does not extinguish a controversy. *See, Concerned Citizens of Vicksburg v. Sills*, 567 F.2d 646, 650 (5th Cir. 1978). Such a course of action comports with the Sixth Circuit's general rule that issues raised for the first

time on appeal are not properly before the court. The court of appeals has "deviated from the general rule in 'exceptional cases or particular circumstances' or when the rule would produce 'a plain miscarriage of justice.' " *Foster v. Barilow*, 6 F.3d 405, 407 (6th Cir. 1993) (citations omitted). *See, also, Holly Farms Corp. v. NLRB*, 517 U.S. 392, 400 n. 7 (1996) (United States Supreme Court generally does not "address arguments that were not the basis of the decision below"). Factors the Sixth Circuit must consider in determining whether to exercise its discretion to deviate from this traditional rule include:

> 1) whether the issue newly raised on appeal is a question of law, or whether it requires or necessitates a determination of facts; 2) whether the proper resolution of the new issue is clear and beyond doubt; 3) whether failure to take up the issue for the first time on appeal will result in a miscarriage of justice or a denial of substantial justice; and 4) the parties' right under our judicial system to have the issues in their suit considered by both a district judge and an appellate Court.

Friendly Farms v. Reliance Ins. Co., 79 F.3d 541, 545 (6th Cir. 1996).

The court of appeals' refusal to address the Amended Canon was not an abuse of discretion. Trial on the merits has not occurred in this case. By remanding the Amended Canon to the district court, the court of appeals is allowing for the full development of the factual record and the

legal arguments of the parties.[1] In our system of justice, such development is crucial to the judiciary's ability to reach meaningful, well reasoned, and correct conclusions. On remand, the State will have ample opportunity to build a record regarding the Amended Canon, and the parties will be given the opportunity to have the issue decided by both the district judge and the appellate court. Justice is served for all parties if the normal course of proceedings is followed. Because no exceptional circumstances dictated otherwise, the court of appeals decision to remand was not an abuse of discretion.

The State cites the case of *Rosenstiel v. Rodriguez*, 101 F.3d 1544 (8th Cir. 1996) as being in conflict with the Court of Appeal's decision below. However, *Rosenstiel* is clearly distinguishable because in that case, "[b]oth sides strenuously contend[ed] that remand is unnecessary." *Id.* at 1548. In the case below, the Cleveland Intervenors opposed the Sixth Circuit's consideration of the Amended Canon for the first time on appeal. The Respondents face possible disciplinary sanctions under the Canon as it stood in 1996, when they sought election to the common pleas bench in Cuyahoga County. Ohio Gov. Jud. R. II,

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[1] The State argues that the changes to the Canon "requires no new findings of fact or legal arguments." Petition for Writ of Certiorari at 9. However, the State describes the new canon as a "reasonable limit on spending . . . graduated according to the office sought and the population served by the office being sought." *Id.* at 21. There is no evidence in the record regarding the reasonableness of the Amended Canon. For example, there is no evidence regarding how each spending cap was determined for each population size. The only way to determine whether the Amended Canon is reasonable or arbitrary is to remand to the district court for an evidentiary hearing.

§ 5(E)(1); Ohio Gov. Bar R. V, § 6 (A) – (B). In order to prevent those potential sanctions, the case must be remanded to the district court. The trial court will then be in a position to issue a permanent injunction against the State preventing the enforcement of the former Canon against the Petitioners and to hear evidence and build a record regarding the Amended Canon.

The State argues that remanding the case to the district court "is a waste of state, private and judicial resources." Petition for Writ of Certiorari at 12. However, the inevitable result is that the case must be remanded, whether or not this Court grants a writ of certiorari. If certiorari is granted and Respondents prevail, the case will be remanded to the district court for trial on the merits and the granting of a permanent injunction. If certiorari is granted and Petitioners prevail, the case must be remanded to the trial court to allow development of the record to demonstrate that the State's promulgation of the Amended Canon meets any new standard this Court might put forward. The most efficient method of resolving this dispute is the path taken by the court of appeals: remand the case to the district court for consideration of the Amended Canon. Under the Sixth Circuit order, any plaintiff who desires to challenge the Amended Canon can amend his or her Complaint to do so. The parties will then have an opportunity for a full hearing to develop the evidence concerning the Amended Canon, including the basis the State used to justify its spending caps. Those Respondents who do not wish to challenge the Amended Canon are not required to do so. The Cleveland Intervenors have not violated the Amended Canon and should not be forced to pay for an

appeal to this Court in which the State seeks to test the constitionality of a Canon that has not even been reviewed by the court of appeals.

II. The court of appeals did not err in considering the canon as it existed in 1996 when it concluded that the district court properly granted a preliminary injunction.

The State alleges that the court of appeals erred in considering the former Canon VII(C)(6) when it upheld the district court's grant of injunctive relief. Such an argument ignores the procedural posture of the case at the time the court of appeals issued its decision. The trial court granted a preliminary injunction against the State preventing the enforcement of Canon VII(C)(6) against the Respondents and their opponents during the 1996 election campaigns. The question before the court of appeals was not whether Canon VII(C)(6) was unconstitutional, but whether the trial court erred in issuing its preliminary injunction. Consequently, the court of appeals limited "its review to the consideration of the appropriateness of preliminary injunction under the old Canon VII(C)(6) and under Canon VII(C)(8)." (A-8).

In considering whether a preliminary injunction should have issued, the court of appeals considered four factors: "1) whether the movant has demonstrated a strong likelihood of success on the merits; 2) whether the movant would suffer irreparable harm; 3) whether an injunction would cause substantial harm to others; and 4)

whether the public interest would be served by the issuance of such injunction." (A-9). The court below discussed the constitutionality of the former Canon VII(C)(6) solely to determine if the trial court had erred in granting the preliminary injunction.

Respondent complains that the court of appeals limited the discretion of the trial court by considering the constitutionality of the former Canon VII(C)(6). The same argument can be made every time a court of appeals reviews a grant of a preliminary injunction. Of necessity, the reviewing court must examine the likelihood of success of the litigants, and the trial court will be bound by the decision of the court of appeals. Even if the court of appeals somehow could have avoided any discussion of the merits of the former Canon, the district court would not be writing its decision on a blank tablet. The court of appeals did not announce any new constitutional doctrine in reaching its decision. Every point it made in examining the Respondents' likelihood of success is supported by Supreme Court and Sixth Circuit precedent which is already binding on the district court. *E.g., Buckley v. Valeo*, 424 U.S. 1 (1976); *City of Cincinnati v. Kruse*, 142 F.3d 907 (6th Cir. 1998), *cert. denied*, 67 U.S.L.W. 3187, 3243, 3332, 3336 (U.S. Nov. 16, 1998) (No. 98-454). The State's problem is not that the courts' decisions below mandate a finding that the campaign spending caps are unconstitutional, but that *Buckley* and its progeny mandate that caps on spending in election campaigns are an infringement on core First Amendment speech.

III. The court of appeals correctly found that *Buckley v. Valeo* and its progeny prohibit campaign spending caps.

As this Court has consistently held, expenditure limits

> operate in an area of the most fundamental First Amendment activities. Discussion of public issues and debate on the qualifications of candidates are integral to the operation of the system of government established by our Constitution. The First Amendment affords the broadest protection to such political expression in order "to assure [the] unfettered interchange of ideas for the bringing about of political and social changes desired by the people." . . . This no more than reflects our "profound national commitment to the principle that debate on public issues should be uninhibited, robust, wide-open."

Buckley v. Valeo, 424 U.S. 1, 14 (1976) (citations omitted).

This Court went on in *Buckley* to explain the effects of campaign spending limits on the First Amendment's guarantee of freedom of speech:

> A restriction on the amount of money a person or group can spend on political communication during a campaign necessarily reduces the quantity of expression by restricting the number of issues discussed, the depth of their exploration, and the size of the audience reached. This is because virtually every means of communicating ideas in today's mass society requires the expenditure of money. The distribution of the humblest handbill or leaflet entails printing, paper, and circulation costs. Speeches and rallies

> generally necessitate hiring a hall and publicizing the event. The electorate's increasing dependence on television, radio, and other mass media for news and information has made these expensive modes of communication indispensable instruments of effective political speech.

Id. at 19.

The Canon at issue here, which restricts expenditures of Ohio judicial candidates, cuts at the core of political expression as described in *Buckley*. The First Amendment right of free speech is a fundamental right, and an infringement of that right, though justified, must be accomplished by the least restrictive means available. *See, e.g., Anderson v. Celebrezze*, 460 U.S. 780, 806 (1983). Political speech, such as that implicated here, is subject to even stricter scrutiny. "When a law burdens core political speech, we apply 'exacting scrutiny,' and we uphold the restriction only if it is narrowly tailored to serve an overriding state interest." *McIntyre v. Ohio Elections Commission*, 514 U.S. 334, 337 (1995); *Shrink Missouri Government PAC v. Maupin*, 892 F. Supp. 1246, 1249 (E.D. Mo. 1995).

This Court does not need to address the State's argument that the Sixth Circuit erred in "rejecting" its purported compelling interest, because the State failed to show that its Canon is the least restrictive means of achieving its goal of preserving the impartiality and the appearance of the impartiality of the judiciary. (A-20). In fact, the State has numerous judicial Canons in place that more directly address its purported compelling interest and are narrowly tailored to serve that interest, unlike

Canon VII(C)(6), which prohibits all political expression once the expenditure limits are reached.

For instance, Canon VII(C)(5)(a) imposes campaign *contribution* limits. This Court has recognized that campaign contribution limits are constitutional because they are more closely related to avoiding corruption and the appearance of corruption than campaign spending caps. *Buckley*, 424 U.S. at 27-29. Canon III(B)(2) requires a judicial candidate to be unswayed "by partisan interests, public clamor, or fear of criticism." Canon III(B)(9) requires a judicial candidate to abstain from public comment about a pending or impending proceeding in any court. Canon VII(B)(2)(c) prohibits judicial candidates from making pledges or promises of conduct in office other than faithful and impartial performance of the duties of the office. Canon VII(B)(2)(d) prohibits a judicial candidate from making statements that commit or appear to commit the candidate "with respect to cases or controversies that are likely to come before the court." Not only do these Canons go directly to the factors of impartiality, and the appearance of impartiality, but they are certainly less restrictive of free speech rights than a cap on campaign spending, which prohibits *all* speech once a candidate reaches the expenditure limit. Because Canon VII(C)(6) is not narrowly tailored, this Court would have to uphold the court of appeals even if it found that the State has an overriding interest in the preservation of the impartiality and the appearance of the impartiality of the judiciary.

Despite the argument of the State to the contrary, the Sixth Circuit did *not* hold that the State lacks a compelling interest in impartiality and the appearance of impartiality of the judiciary. Instead, the court below rightly held that preventing corruption or the appearance of corruption are the only legitimate and compelling interests for restricting campaign finances that this Court has identified to date. (A-19); *Federal Election Comm'n v. NCPAC*, 470 U.S. 480, 496-97 (1984); *City of Cincinnati v. Kruse*, 142 F.3d 907 (6th Cir. 1998), *cert. denied*, 67 U.S.L.W. 3187, 3243, 3332, 3336 (U.S. Nov. 16, 1998) (No. 98-454) (1998); *Zeller v. Florida Bar*, 909 F. Supp. 1518, 1525 (N.D. Fla. 1995). Beginning with *Buckley*, this Court has consistently examined both contribution limits and spending limits in light of this compelling state interest, finding unconstitutional those provisions that limit: 1) a candidate's campaign expenditures, *Buckley*, 424 U.S. at 54-58; 2) a candidate's right to spend his or her own money, *Id.* at 51-54; 3) a person's right to make independent expenditures not coordinated with the candidate or candidate's campaign, *Id.* at 39-51; 4) the right of political committees to make independent expenditures *NCPAC*, 470 U.S. at 497; and 5) the right of political parties to make independent expenditures, *Colorado Republican Campaign Comm. v. Federal Election Comm'n*, 518 U.S. 604 (1996). The Sixth Circuit rightly decided that avoiding corruption or the appearance of corruption is not an overriding interest justifying campaign spending limits. (A-20).

Canon VII(C)(6) is a straight-forward cap on the amount of money that judicial candidates and their campaign committees can spend on espousing their candidacy in Ohio. In 1996, the Canon restricted each

candidate for the court of common pleas to spending no more than $75,000 to advocate his or her own election to office. Once that limit was reached, the candidate had no choice but to remain silent. Canon VII(C)(6) thus "reduces the quantity of expression by restricting the number of issues discussed, the depth of their exploration, and the size of the audience reached." *Buckley*, 424 U.S. at 19. Such a restriction is blatantly contrary to the dictates of the First Amendment and this Court's precedent.

The State argues that candidates for judicial office should not be afforded the same free speech protections as other candidates. However, as the court of appeals correctly found, "an election candidate does not forego his or her First Amendment rights simply because he or she decides to seek a judicial office, rather than a non-judicial one." (A-12). Courts have consistently held that a State's right to regulate speech in a judicial campaign is not unlimited. *E.g., Buckley v. Illinois Judicial Inquiry Bd.*, 991 F.2d 224 (7th Cir. 1993) (striking down judicial canon forbidding judicial candidates from making pledges or promises other than the faithful and impartial performance of duties of the office and from announcing views on disputed legal or political issues); *J.C.J.D. v. R.J.C.R.*, 803 S.W. 2d 953 (Sup. Ct. Ky. 1991) (the same); *ACLU of Florida v. Florida Bar*, 744 F. Supp. 1094 (1990) (the same).

Article IV, § 6 of the Ohio Constitution requires the election of judges to the supreme court, the courts of appeals, the courts of common pleas, and divisions of the courts of common pleas. As long as Ohio retains its system of electing judges to office, judicial candidates must be allowed to provide information to voters to

enable the electorate to make meaningful choices. As this Court recognized in *Buckley*, virtually every means of communicating in today's society involves the expenditures of money. If Ohio judicial candidates are deprived of these "indispensable instruments of political speech," the aim of the First Amendment to protect and ensure open, robust debate on public issues is all but destroyed. *Buckley*, 424 U.S. at 19.

CONCLUSION

For the foregoing reasons, Respondents Boyko, Kane, and Saferin respectfully request that this Court deny the Petition for Writ of Certiorari.

Respectfully submitted,

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